

Public Procurement and Disposal of Public Assets (General)  
(Amendment) Regulations, 2022 (No. 4)

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IT is hereby notified that the Honourable Vice President responsible for Procurement, in consultation with the Minister of Finance and Economic Development, in terms of section 101 of the Public Procurement and Disposal of Public Assets Act [Chapter 22:23], and after consulting with the Procurement Regulatory Authority of Zimbabwe, has made the following regulations:—

1. These regulations may be cited as the Public Procurement and Disposal of Public Assets (General) (Amendment) Regulations, 2022 (No. 4).

2. The Public Procurement and Disposal of Public Assets (General) Regulations, 2018, published in Statutory Instrument 5 of 2018, are amended by—

- (a) the deletion of section 8(2)(a) and (b) and substitution with the following—

“(2) The percentage domestic preference allowable shall be—

- (a) up to twenty *per centum* for the procurement of goods; and  
(b) up to ten *per centum* for the procurement of contractor services as may be determined by the Authority in a circular:

Provided that the Authority shall review these percentages annually.”;

- (b) the deletion of section 10(3) and substitution with the following—

“(3) Where the price of the procurement requirement is—

- (a) above the Zimbabwean dollar (ZWL) equivalent of twenty thousand (20 000) United States dollars, computed in the ruling rate at the time, but does not

exceed the Zimbabwean dollar (ZWL) equivalent of ten million (10 000 000) United States dollars, computed in the ruling rate at the time, in the case of construction works; or

(b) above the Zimbabwean dollar (ZWL) equivalent of ten thousand (10 000) United States dollars, computed in the ruling rate at the time, but does not exceed the Zimbabwean dollar (ZWL) equivalent of five hundred thousand (500 000) United States dollars, computed in the ruling rate at the time, in the case of goods; or

(c) above the Zimbabwean dollar (ZWL) equivalent of five thousand (5 000) United States dollars, computed in the ruling rate at the time, but does not exceed the Zimbabwean dollar (ZWL) equivalent of one million (1 000 000) United States dollars, computed in the ruling rate at the time, in case of consultancy and non-consultancy services;

procuring entities may invite only Zimbabwean (domestic) suppliers to bid.”;

(c) the deletion of section 10(4) and substitution with the following—

“(4) Where the price of the procurement requirement exceeds—

(a) the Zimbabwean dollar (ZWL) equivalent of ten million (10 000 000) United States dollars, computed in the ruling rate at the time, in the case of construction works; or

- (b) the Zimbabwean dollar (ZWL) equivalent of five hundred thousand (500 000) United States dollars, computed in the ruling rate at the time, in the case of goods; or
- (c) the Zimbabwean dollar equivalent of one million (1 000 000) United States dollars, computed in the ruling rate at the time, in the case of consultancy and non-consultancy services; procuring entities shall invite bids in accordance with the Act from both Zimbabwean (domestic) and foreign bidders.”.

